

(2) A railway receipt shall be prima facie evidence of the weight and the number of packages stated therein :

Provided that in the case of a consignment in wagon-load or train – load and the weight or the number of packages is not checked by a railway servant authorized in this behalf, and a statement to that effect is recorded in such railway receipt by him, the burden of proving the weight or, as the case may be, the number of packages stated therein, shall lie on the consignor, the consignee or the endorsee.

Comments

Section 65, sub-clause (1) imposes an obligation on railway administration issue railway receipt for the goods entrusted to it.

Sub-clause (2) lays down the circumstance under which the railway administration shall not be responsible for correctness of weight description or classification or number of packages mentioned in railway receipt.

66. Powers to require statement relating to the description of goods. – (1) The owner or a person having charge of any goods which are brought upon a railway for the purposes of carriage by railway, and the consignee or the endorsee of any consignment shall, on the request of any railway servant authorized in this behalf, deliver to such railway servant a statement in writing signed by such owner or person or by such consignee or endorsee, as the case may be, containing such description of the goods as would enable the railway servant to determine the rate for such carriage.

(2) If such owner or person refuses or neglects to give the statement as required under Sub-section (1) and refuses to open the package containing the goods, if so required by the railway servant, it shall be open to the railway administration to refuse to accept such goods for carriage unless such owner or person pays for such carriage the highest rate for any class of goods ;

(3) If the consignee or endorsee refuses or neglects to give the statement as required under the Sub-section (1) and refuses to open the package containing the goods, if so required by the railway servant, it shall be open to the railway administration to charge in respect of the carriage of the goods the highest rate for any class of goods.

(4) If the statement delivered under sub-section (1) is materially false with respect to the description of any goods to which it purports to relate, the railway administration may charge in respect of the carriage of such goods such rate, not exceeding double the highest rate for any class of goods as may be specified by the Central Government.

(5) If any difference arises between a railway servant and such owner or person, the consignee or the endorsee, as the case may be in respect of the description of the goods for which a statement has been delivered under sub-section 91), the railway servant may detain and examine the goods.

(6) Where any goods have been detained under sub-section 95) for examination and upon such examination it is found that the description of the goods is different from that given in the statement delivered under sub-section (1), the cost of such detention and examination shall be borne by such owner or person, the consignee or the endorsee, as the case may be, and the railway administration shall not be liable for any loss, damage or deterioration which may be caused by such detention or examination.

Comments

Section 66, sub-clause (1) provides for delivery of a statement of description of goods by owner, consignee or endorsee to a railway servant.

Sub-clause (2) empowers the railway administration to refuse to accept the goods in the circumstances mentioned therein.

Sub-clause (3) empowers the railway administration to charge the highest rate for any class of goods in cases mentioned therein.

Sub-causes (4), 95) and (6) empower the railway administration to charge the rate not exceeding double the highest rate for any class of goods in case the statement delivered under sub-clause (1) is materially false and examination of goods at the cost of the owner, etc.

67. Carriage of dangerous or offensive goods.- (1) No person shall take with him on a railway, or require a railway administration to carry such dangerous or offensive goods, as may be prescribed, except in accordance with the provisions of this section.

(2) No person shall take with him on a railway the goods referred to in sub-section (1) unless he given a notice in writing of their dangerous or offensive nature to the railway servant authorized in this behalf.

(3) No person shall entrust the goods referred to in sub-section (1) to a railway servant authorized in this behalf for carriage unless the distinctly marks on the outside of the package containing such goods their dangerous or offensive nature and gives a notice in writing of their dangerous or offensive nature to such Railway Servant.

(4) If any railway servant has reason to believe that goods contained in a package are dangerous or offensive and noticed as required Under Sub-section